

Non-Disclosure, Confidentiality and Liability Agreement

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Non-Disclosure, Confidentiality and Liability Agreement

INTRODUCTION

Saudi Aramco headquartered in P.O. Box 5000, Dhahran 31311, Kingdom of Saudi Arabia And

_____ having its headquarters registered address at _____
_____ represented by _____

Herein after referred to as together referred to as the parties.

Taking into consideration the fact that the parties have entered into commercial relations, in which important and sensitive information is to be provided by, in order for the latter to fulfill its obligations, which information might lead to damages and losses, if revealed, the parties agreed as follows:

DEFINITION

For purposes of this Agreement, "Confidential Information" means any data or information that is proprietary to the Disclosing Party and not generally known to the public, whether in tangible or intangible form, whenever and however disclosed, including, but not limited to: marketing strategies, plans, financial information, or projections, operations, sales estimates, business plans and performance results relating to the past, present or future business activities of such party, its affiliates, subsidiaries and affiliated companies; plans for products or services, and customer or supplier lists; any scientific or technical information, invention, design, process, procedure, formula, improvement, technology or method; concepts, reports, data, know-how, designs, development tools, dies, specifications, computer software, source code, object code, flow charts, databases, inventions, information and trade secrets. The Confidential Information need not be novel, unique, patentable or copyrightable in order to be designated Confidential Information. The Receiving Party acknowledges that the Confidential Information is proprietary to the Disclosing Party. Receiving Party is not responsible when the Confidential Information is not belonging to the Disclosing Party.

Disclosure and Use of Confidential Information

The Receiving Party agrees to use the Confidential Information solely in connection with the current or contemplated business relationship between the parties and not for any other purpose. The title to the Confidential Information will remain solely in the Disclosing Party. All use of Confidential Information by the Receiving Party shall be for the benefit of the Disclosing Party. The Confidential information shall not be revealed or provided to third parties unless in accordance with these terms and conditions. The Recipient may disclose the Confidential Information to its representatives for the purposes of fulfilling the purpose.

This clause shall not apply in the case when the Receiving party is bound by the law to disclose the Confidential Information to any governmental, judicial, or administrative order, subpoena, discovery request, regulatory request or similar method, provided that the Receiving Party to the extent permitted by law promptly notifies the Disclosing Party in writing of such demand for disclosure. In addition, when transmitting Confidential Information from the Disclosing Party to the Receiving Party that is already publicly known or later come to be known publicly by or through other information is not covered by this article.

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Term

This Agreement shall remain in effect for the period of their commercial relations. Notwithstanding the foregoing, the parties' duty to hold in confidence the Confidential Information that was disclosed during term shall remain in effect for three (3) years.

Return of Confidential Information

The Receiving Party shall immediately return and redeliver to the other all tangible material embodying the Confidential Information provided hereunder and all notes, summaries, memoranda, drawings, manuals, records, dies, excerpts or derivative information deriving there from and all other documents or materials, and all copies of any of the foregoing, including copies that have been converted to computerized media in the form of image, data or word processing files either manually or by image capture, based on or including any Confidential Information, in whatever form of storage or retrieval, upon the earlier of the completion or termination of the dealings between the parties contemplated hereunder; the termination of this Agreement; or at such time as the Disclosing Party may so request. If designs belongs to the Receiving Party, they will not be returned to The Disclosing Party and they should keep them confidential.

Disclosure and Use of Confidential Information

Receiving Party shall notify the Disclosing Party immediately upon discovery of any unauthorized use or disclosure of Confidential Information by Receiving Party or its Representatives, or any other breach of this Agreement by Receiving Party or its Representatives, and will cooperate with efforts by the Disclosing Party to help the Disclosing Party regain possession of Confidential Information and prevent its further unauthorized use.

Liability or responsibility of the Receiving Party under this contract will begin after signing this contract. The Confidential Information given to the Third Party individuals before signing this contract will not bind the Receiving Party.

Limitation of Liability

The Receiving Party hereby agrees to indemnify and hold harmless the Disclosing Party and the Disclosing Party's Affiliates from and against any and all losses, damages, suits, proceedings, claims, demands, liabilities, fines, costs and expenses (whether direct or indirect, and whether or not resulting from third party claims), including interest and penalties with respect thereto and out-of pocket expenses, including reasonable attorneys' fees and disbursements arising out of or resulting from any breach of the provisions of this Agreement by the Receiving Party or its Representatives, including unauthorized use or disclosure of the Confidential Information by the Receiving Party or, as the case may be, its Representatives.

This indemnification obligation shall survive the termination of this Agreement and shall remain in effect for as long as the Receiving Party or its Representatives retain any Confidential Information belonging to the Disclosing Party or its Affiliates.

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Governing Law

This Agreement shall be governed by and construed in accordance with the laws of the jurisdiction in which the counterparty or its parent company is primarily established, without regard to conflict of law principles. In the event of any dispute arising out of or relating to this Agreement, the parties agree to submit to the non-exclusive jurisdiction of the courts in that jurisdiction. Each party hereby consents to such jurisdiction for the purposes of resolving any such disputes.

ACKNOWLEDGEMENT

I have read and understand the statements presented in the above “Non-disclosure, Confidentiality” regarding my permitted and potential/inadvertent access to confidential or sensitive information or data;

- (1) I agree with these stated responsibilities;
- (2) I understand that misuse of confidential or sensitive information or data, whether intentional or due to neglect on my part, is a breach of Saudi Aramco policy and grounds for corrective action which may include my dismissal, the termination of access or the termination of a contractual agreement and may subject me to possible civil legal action.

Agreed to on the _____ day of _____, in the year _____,

Signed By **VENDOR / PARTNER / CONTRACTOR**

Signed By **SAUDI ARAMCO**

:

Signature _____

Date _____

Signature _____

Date _____

Print Name _____

Print Name _____

Title _____

Title _____